

GALVESTON COUNTY PROBATE COURT

Galveston County Justice Center
600 59th Street, Suite 2305
Galveston, Texas 77551-4180

Submitting Paperwork for Will Prove-ups and Heirships

It is the Court's policy to review, before the hearing, documents for probate prove-up hearings – not only for uncontested-docket hearings, but also for most regular-docket probate prove-ups. By reviewing documents in advance, the Court can ensure that hearings go more smoothly for participants who are already dealing with the stress of someone's death.

1. Initial filing of the Application

- E-file the application.

2. Do within 3 business days after E-filing Application to Probate a Will

- TRCP Rule 21(f)(12) requires that any original Will must be physically filed in the Clerk's office within three business days after the application is electronically filed.

3. Do before setting an Heirship/Administration Hearing

- Check on Service of Citation on – or waiver from – all non-applicant heirs and other persons requiring notice under Texas Estates Code §202.008.
- Check on Affidavit of Citation by Publication. (Clerk prepares citation; you publish and then file affidavit.) The Clerk's Office will handle the citation by publication on the website maintained by OCA.
- File Section §202.057 Affidavit or Certificate.
- Check on Consents from all heirs if seeking Independent Administration without Bond. Consents must be signed on or after the case has been on file with the court.
- If you are seeking a Dependent Administration, please have all asset amounts so a Bond can be set.

4. Do as soon as you set a probate prove-up hearing

- As soon as you set the hearing, please E-file all proposed hearing documents to the Court. The court can now sign Orders electronically and is the preferred method. We also have an electronic signature pad for all Oaths, Proofs and other documents the clients/witnesses can sign. Per Admin Order 2022-10, all documents must be on file 72 hours prior to the hearing or we will reset.